SAUDI LABOR LAW

Unofficial English Translation

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Translation note: This English text is a professional translation of the Arabic PDF supplied for academic and reference purposes. It is not an official legal translation. Where interpretation is required, the Arabic text remains authoritative.

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Part One - Definitions and General Provisions

Chapter One - Definitions

Article 1

This Law shall be called the **Labor Law**.

Article 2

For the purposes of this Law, the following words and expressions, wherever they appear, shall have the meanings assigned to them below unless the context requires otherwise:

- **Ministry:** The Ministry of Human Resources and Social Development.
- **Minister:** The Minister of Human Resources and Social Development.
- **Labor Office:** The administrative authority responsible for labor affairs within the geographical area determined by a decision of the Minister.
- **Employer:** Any natural or legal person who employs one or more workers in return for a wage.
- **Worker:** Any natural person, male or female, who works for an employer and under the employer's management or supervision in return for a wage, even where the worker performs the work away from the employer's direct observation.
- **Juvenile:** A person who has completed fifteen years of age but has not reached eighteen years of age.
- **Work:** The effort exerted in any human activity pursuant to an employment contract, whether written or unwritten, regardless of its nature or type, whether industrial, commercial, agricultural, technical, or otherwise, and whether physical or mental.
- **Original Work:** For an individual, the subject of that individual's usual activity; and for an establishment, the work for which the establishment was created and which is stated in its articles of association, concession agreement, if it is a concession company, or commercial register.
- **Temporary Work:** Work which, by its nature, falls within the employer's activity and whose completion requires a specified period, or work relating to a specific task that ends upon completion of that task; in either case, the duration shall not exceed ninety days.
- **Occasional Work:** Work which, by its nature, does not fall within the employer's usual activity and whose performance does not exceed ninety days.
- **Seasonal Work:** Work performed during recognized recurring seasons.
- **Part-Time Work:** Work performed by a worker who is not employed full-time by an employer and whose working hours are less than one-half of the establishment's customary daily working hours, whether the worker performs such hours every day or on certain days of the week.
- **Continuous Service:** The worker's uninterrupted service with the same employer or the employer's lawful successor from the date on which service commenced. Service shall be deemed continuous in the following cases:
  1. Statutory holidays and leave.
  2. A period of interruption for the purpose of sitting examinations, in accordance with this Law.
  3. Periods of absence from work without pay that do not, in total, exceed twenty intermittent days during a work year.
- **Assignment:** A service under which a worker is supplied to work for a person other than the worker's employer through an establishment licensed for that purpose.
- **Resignation:** A worker's written expression, without coercion, of the desire to terminate a fixed-term employment contract without making such termination subject to any condition or restriction, and the employer's acceptance thereof.
- **Basic Wage:** All amounts paid to a worker in return for the worker's work under a written or unwritten employment contract, regardless of the type of wage or the method by which it is paid, together with periodic increments.
- **Actual Wage:** The basic wage together with all other amounts due to the worker in consideration of effort made in the course of work, risks to which the worker is exposed in performing the work, or amounts granted pursuant to the employment contract or the work organization regulations. These include:
  1. Commissions; percentages of sales; or percentages of profits paid in consideration of what the worker markets, produces, or collects, or for increases or improvements achieved in production.

2. Allowances due to the worker in consideration of the effort expended or risks encountered in performing the work.
3. Increases that may be granted in consideration of the cost of living or family responsibilities.
4. **Grant or Bonus:** An amount paid by the employer to the worker as a reward for honesty, efficiency, or similar qualities, if the grant or bonus is stipulated in the employment contract or the establishment's work organization regulations, or if it has become customary to grant it to the extent that workers regard it as part of their wage rather than as a voluntary gift.
5. **Benefits in Kind:** Benefits which the employer is obligated to provide to the worker in consideration of the worker's work, where they are stipulated in the employment contract or the work organization regulations. Their value shall be assessed, at most, at the equivalent of two months' basic wage for each year, unless the employment contract or the work organization regulations assess them at a higher amount.

- **Wage:** The actual wage.
- **Establishment:** Any enterprise managed by a natural or legal person that employs one or more workers in return for a wage, regardless of its type.
- **Month:** Thirty days, unless otherwise stipulated in the employment contract or the work organization regulations.
- **Regulations:** The Implementing Regulations of this Law.

Amendment note to Article 2: Article 2 was amended pursuant to Royal Decree No. (M/134) dated 27/11/1440 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Chapter Two - General Provisions

Article 3

Work is a right of citizens. It may not be practiced by non-citizens except after satisfying the conditions prescribed by this Law. Citizens shall be equal in the right to work without discrimination on the basis of sex, disability, age, or any other form of discrimination, whether in the performance of work, recruitment, or job advertising.

Amendment note: Article 3 was amended pursuant to Royal Decree No. (M/134) dated 27/11/1440 AH.

Article 4

When applying the provisions of this Law, both the employer and the worker shall comply with the requirements of Islamic Sharia.

Article 5

The provisions of this Law shall apply to the following:

1. Every employment contract under which a person undertakes to work for an employer, under the employer's management or supervision, in return for a wage.
2. Workers employed by the Government, public authorities, and public institutions, including persons working in pastures or agriculture.
3. Workers employed by charitable institutions.
4. Qualification and training contracts concluded with persons who are not workers of the employer, within the limits of the special provisions prescribed by this Law.
5. Part-time workers, within the limits relating to occupational safety and health, work injuries, and such other matters as the Minister may determine.

Amendment note: Article 5 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 6

The provisions concerning duties and disciplinary rules, maximum working hours, daily and weekly rest periods, overtime work, official holidays, occupational safety and health, work injuries and compensation therefor, and any matters determined by the Minister shall apply to occasional, seasonal, and temporary workers.

Article 7

1. The following shall be excluded from the application of the provisions of this Law:

a. Members of the employer's family, namely the spouse, ascendants, and descendants, who work in an establishment in which no persons other than them are employed.

b. Players and coaches of sports clubs and federations.

c. Domestic workers and persons treated as such.

d. Agricultural workers, private herders, and persons treated as such.

e. Non-Saudi workers who enter the Kingdom to perform a specific task for a period not exceeding two months.

2. The Minister, in coordination with the competent authorities, shall issue one or more regulations for the categories referred to in subparagraphs (a), (c), (d), and (e) of paragraph (1) of this Article. Such regulations shall include the rights, duties, and other relevant provisions applicable to each category. As an exception to paragraph (1) of this Article, violations of those regulations shall be subject to the penalties stipulated in Article 229 of this Law.

3. The regulations issued in respect of the categories referred to in subparagraphs (c) and (d) of paragraph (1) shall include procedures and mechanisms designed to improve labor-market performance for those categories, regulate the movement and transfer of such workers, and determine the responsibilities and duties of employers and the offices and companies that mediate in contracting with them.

Amendment note: Article 7 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 8

Any condition that is contrary to the provisions of this Law shall be null and void. Any release or settlement concerning rights arising to the worker under this Law during the term of the employment contract shall likewise be null and void, unless it is more favorable to the worker.

Article 9

The Arabic language shall be used in data, records, files, employment contracts, and all other matters required by this Law or by any decision issued for its implementation, as well as in instructions issued by an employer to the employer's workers.

Where an employer uses a foreign language alongside Arabic in any of the foregoing matters, the Arabic text shall be the authoritative text.

Article 10

All periods and time limits prescribed by this Law shall be calculated according to the Hijri calendar, unless the employment contract or the work organization regulations provide otherwise.

Article 11

Where an employer assigns to any natural or legal person the performance of any of the employer's original work, or part thereof, that person shall grant the workers employed for such work all rights and benefits that the original employer grants to the original employer's workers.

Amendment note: Article 11 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 11 bis

Without prejudice to the provisions of this Law and other relevant laws, the Minister may take such measures as are necessary to improve labor-market performance and regulate the movement and transfer of the workforce.

Amendment note: Article 11 bis was added pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 12

1. The Ministry shall prepare one or more standard forms for work organization regulations. Such forms shall comprehensively address the rules governing the organization of work and related provisions, including provisions concerning benefits, violations, and disciplinary penalties.

2. The Ministry shall establish the controls and procedures for approval of work organization regulations.

Amendment note: Article 12 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 13

1. Every employer shall prepare work organization regulations for the establishment in accordance with the form prepared by the Ministry. The Minister may grant an exemption from this requirement.
2. The employer may include additional terms and provisions in such regulations, provided they do not conflict with this Law, its Implementing Regulations, or decisions issued for its implementation.
3. The employer shall announce the work organization regulations and any amendments thereto in a conspicuous place in the establishment or by any other means that ensures that persons subject to the regulations are aware of their provisions.

Amendment note: Article 13 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 14

Repealed.

Amendment note: Article 14 was amended and subsequently repealed after being merged with Article 13 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 15

Upon commencement of work in any establishment, the employer shall notify the competent Labor Office in writing of the following particulars:

1. The establishment's name, type, and headquarters; the address to which correspondence is to be sent; and any information that facilitates communication with the establishment.
2. The licensed economic activity, stating the commercial registration or license number and date, the authority that issued it, and attaching a copy thereof.
3. The number of workers intended to be employed in the establishment.
4. The name of the responsible manager of the establishment.
5. Any other information requested by the Ministry.

Article 16

1. If the employer is unable to manage the work personally, the employer shall appoint a responsible person to represent the employer at the workplace. Where the establishment has more than one partner or manager, one of the persons residing at the workplace shall be designated to represent the employer and shall be responsible for any violation of this Law.
2. The employer shall notify the competent Labor Office in writing of the name of the partner or manager. If that person changes, the employer shall notify the Office of the name of the new partner or manager within no more than seven days from the date on which the new person assumes the duties.
3. If no person has been specifically appointed as the responsible manager of the establishment, or if the appointed person has not commenced the duties, the person who actually performs the functions of manager, or the employer personally, shall be deemed the responsible manager of the establishment.

In all cases, the employer's primary liability shall remain in force.

Article 17

The employer shall keep at the workplace such registers, statements, and files, and such data therein, as are specified by the Implementing Regulations.

The employer shall also display, in a conspicuous place at the worksite, a schedule setting out working hours, rest periods, the weekly rest day, and the starting and finishing time of each shift where work is organized in shifts.

Article 18

If ownership of an establishment is transferred to a new owner, or if its legal form changes through merger, division, or otherwise, the employment contracts shall remain effective in all cases and service shall be deemed continuous.

As regards workers' rights arising in respect of periods preceding such change, including wages, the end-of-service award deemed due on the date of transfer of ownership, and other rights, the predecessor and successor shall be jointly liable. In the case of a transfer of an individually owned establishment for any

reason, the predecessor and successor may agree, with the worker's written consent, that all pre-existing rights of the worker shall transfer to the new owner. If the worker does not consent, the worker may request termination of the contract and receive the worker's entitlements from the predecessor.

Article 19

Amounts due to a worker or the worker's heirs under this Law shall constitute first-ranking privileged debts. For the purpose of recovering such amounts, the worker and the worker's heirs shall have a privilege over all assets of the employer.

In the event of the employer's bankruptcy or liquidation of the establishment, such amounts shall be registered as privileged debts, and the worker shall be paid, on an expedited basis, an amount equivalent to one month's wage before payment of any other expenses, including court costs and bankruptcy or liquidation expenses.

Article 20

Neither the employer nor the worker may undertake any act that constitutes an abuse of the provisions of this Law or of the decisions and regulations issued for its implementation. Neither party may undertake any act intended to exert pressure on the freedom of the other party, or on the freedom of other workers or employers, for the purpose of achieving any interest or viewpoint in a manner inconsistent with freedom of work or with the jurisdiction of the competent authority for settlement of disputes.

Article 21

For the purpose of implementing the provisions of this Law, the Minister shall coordinate with the relevant authorities whenever necessary.

Part Two - Regulation of Recruitment Operations

Chapter One - Recruitment Channels

Article 22

The Ministry shall provide recruitment channels free of charge. Such channels shall undertake the following:

1. Assist workers in obtaining suitable employment and assist employers in finding suitable workers.
2. Collect and analyze the information necessary regarding the labor market and its development, so that such information is available to the various public and private bodies concerned with economic and social planning.
3. Perform the following functions:
    1. Register job seekers.
    2. Obtain information from employers regarding vacant positions.
    3. Match applications submitted by job seekers with available positions in accordance with their qualifications.
    4. Provide job seekers with advice and assistance concerning vocational qualification and training, or any retraining required to obtain available positions.
    5. Carry out any other matters determined by the Ministry.

Amendment note: Article 22 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 23

Every citizen who is of working age, able to work, and willing to work may request registration through the recruitment channels, stating the citizen's date of birth, qualifications, previous work experience, preferences, and address.

Amendment note: Article 23 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 24

The Implementing Regulations shall determine the rules and procedures governing the operation of the recruitment channels, the forms of registers, notices, and documents used in their work, and occupational classification schedules based on the approved occupational classification. Such schedules shall serve as a basis for organizing recruitment operations.

Amendment note: Article 24 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 25

Every employer shall submit the following to the Ministry:

1. A statement of vacant and newly created positions, specifying their types, locations, allocated wages, and the conditions required for appointment thereto, within a period not exceeding fifteen days from the date on which the vacancy arises or the position is created.
2. A notice of the action taken regarding the employment of a citizen nominated through the recruitment channels, within seven days from receipt of the nomination letter.
3. A statement containing the names of the employer's workers, their positions, occupations, wages, ages, nationalities, the numbers and dates of work permits for non-Saudi workers, and any other information specified by the Implementing Regulations.
4. A report concerning the status, conditions, and nature of work and any anticipated decrease or increase in work during the year following the date of the report.
5. The information referred to in paragraphs (3) and (4) of this Article shall be submitted during the month of Muharram of each year.

Amendment note: Article 25 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 26

1. All establishments, regardless of their activities or the number of workers employed, shall endeavor to attract and employ Saudi nationals, provide means to support their continued employment, and afford them an appropriate opportunity to demonstrate their suitability for work through guidance, training, and qualification for the duties assigned to them.
2. The proportion of Saudi workers employed by an employer shall not be less than 75% of the employer's total workforce. Where the required technical competencies or academic qualifications are unavailable, or where positions cannot be filled by Saudi nationals, the Minister may temporarily reduce this percentage.

Article 27

Where necessary, the Minister may require employers, in specified activities or occupations and in specified regions or governorates, not to employ workers unless such workers have first been registered through the recruitment channels, subject to the conditions and arrangements prescribed by a decision of the Minister.

Amendment note: Article 27 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Chapter Two - Employment of Persons with Disabilities

Article 28

Every employer who employs twenty-five workers or more, and whose work is of a nature that enables the employment of professionally qualified persons with disabilities, shall ensure that professionally qualified persons with disabilities constitute at least 4% of the employer's total workforce, whether such persons are nominated through recruitment channels or otherwise.

The employer shall submit to the Ministry a statement indicating the number of positions and jobs occupied by professionally qualified persons with disabilities and the wage of each such worker.

Amendment note: Article 28 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 29

If a worker suffers a work injury that results in a reduction in the worker's normal capabilities but does not prevent the worker from performing another type of work, the employer with whom the work injury occurred shall employ the worker in suitable work at the wage prescribed for that work. This shall not prejudice the worker's entitlement to compensation for the injury.

Chapter Three - Private Offices and Companies for the Employment of Saudis, and Private Recruitment Offices and Companies

Article 30

1. No natural or legal person may engage in the activity of employing Saudis, recruiting workers, or providing assignment services unless licensed by the Ministry to do so.

The Implementing Regulations shall determine the controls governing the practice of each of these activities; the conditions for granting and renewing the relevant license; the obligations of the licensee; the rules governing non-renewal or cancellation of the license and the consequences thereof; and any other conditions and controls necessary to ensure the proper conduct of such activities.

2. The Ministry shall propose the amount of the fees payable for carrying out the activities referred to in paragraph (1) of this Article and the purposes for which such fees shall be used, in preparation for completion of the applicable regulatory procedures.

Amendment note: Article 30 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 31

Saudi workers whose employment is facilitated by employment offices or companies, and workers recruited by recruitment offices or companies on behalf of employers, shall be considered workers of the relevant employer and shall have a direct contractual relationship with that employer.

Amendment note: Article 31 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Part Three - Employment of Non-Saudis

Article 32

Recruitment for the purpose of employment shall not be permitted without the prior approval of the Ministry.

Article 33

A non-Saudi person may not engage in any work, nor may such person be permitted to do so, unless a work permit has first been obtained from the Ministry in the form prescribed for that purpose. The following conditions shall be satisfied for issuance of the permit:

1. The worker must have entered the Kingdom lawfully and be authorized to work.
2. The worker must possess professional competencies or academic qualifications needed in the Kingdom and not sufficiently available among Saudi nationals, or must belong to a category of ordinary workers needed in the Kingdom.
3. The worker must be under contract with an employer and under that employer's responsibility.

For the purposes of this Article, the term **work** includes every industrial, commercial, agricultural, financial, or other type of work, and any service, including domestic service.

Article 34

Any permit or license required by another authority for the practice of a particular work or occupation shall not substitute for the work permit referred to above.

Article 35

For reasons it deems appropriate, the Ministry may decline to renew a work permit where the employer violates the employment-nationalization standards prescribed by the Ministry or any other requirements or controls set out in the Implementing Regulations. The Implementing Regulations shall specify procedures ensuring that the worker is not adversely affected by non-renewal of the work permit, including the possibility of transferring the worker's services to another employer without the consent of the non-compliant employer.

> **Amendment note:** Article 35 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 36

The Minister shall, by decision, determine the occupations and types of work in which non-Saudis are prohibited from engaging.

Article 37

The employment contract of a non-Saudi worker shall be in writing and for a fixed term. If the contract does not specify its duration, it shall be deemed to have a term of one year commencing on the date on which the worker actually begins work. If the work continues after expiry of that period, the contract shall be deemed renewed for an equivalent period.

> **Amendment note:** Article 37 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 38

An employer may not employ a worker in an occupation other than the occupation specified in the worker's work permit. A worker may not work in an occupation other than the occupation stated in the permit before the prescribed legal procedures for changing the occupation have been completed.

Article 39

Except in accordance with the prescribed legal rules and procedures, an employer may not allow the employer's worker to work for another person or for the worker's own account. A worker may not work for another employer or for the worker's own account, and an employer may not employ another employer's worker.

The Ministry shall inspect establishments, detect violations of this Law, and take the measures necessary to apply the penalties prescribed hereunder. Matters falling within the jurisdiction of the Ministry of Interior shall then be referred to it for such action as it deems appropriate in accordance with the applicable laws. Likewise, where the Ministry of Interior detects violations relating to provisions within its jurisdiction, it shall

refer the details of employers who violate this Article to the Ministry of Human Resources and Social Development for application of the penalties prescribed under this Law.

Amendment note: Article 39 was amended pursuant to Royal Decree No. (M/24) dated 12/5/1434 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 40

1. The employer shall bear the fees for recruitment of a non-Saudi worker; the fees for the residence permit and work permit and their renewal; any fines resulting from delay for which the employer is responsible; the fees for changing the occupation; exit and re-entry fees; and the cost of the worker's return ticket to the worker's home country upon termination of the relationship between the parties.
2. The worker shall bear the cost of returning to the worker's country if the worker is found unfit for work or wishes to return without a legitimate reason.
3. The employer to whom a worker wishes to transfer shall bear the fees for transferring the worker's services.
4. The employer shall bear the costs of preparing the body of a deceased worker and transporting it to the place where the contract was concluded or from which the worker was recruited, unless the worker is buried in the Kingdom with the consent of the worker's family. The employer shall be exempt from this obligation where the General Organization for Social Insurance assumes such costs.

Amendment note: Article 40 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 41

The Implementing Regulations shall determine the conditions governing recruitment, transfer of services, and change of occupation, together with the relevant controls and procedures.

Part Four - Training and Qualification

Chapter One - Training and Qualification of Workers with the Employer

Article 42

Every employer shall establish a policy for training and qualifying the employer's Saudi workers with the aim of developing their skills and improving their level of performance in technical, administrative, vocational, and other work. The Implementing Regulations shall determine the provisions relating thereto.

Amendment note: Article 42 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 43

Without prejudice to any special conditions or rules concerning training, qualification, and skill development contained in concession agreements or other agreements, every employer shall qualify or train a percentage of the employer's Saudi workers in the work carried out by the employer. Such percentage shall be determined by a decision of the Minister. Saudi workers who continue their studies shall be counted toward that percentage where the employer bears the cost of such studies. The Implementing Regulations shall determine the relevant standards and general provisions.

Amendment note: Article 43 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 44

A training program shall specify the skill in which the worker is to be trained; the rules and conditions governing the training; the duration and number of training hours; the theoretical and practical training programs; the examination method; and the certificates to be awarded. The Implementing Regulations shall determine the standards and general rules to be followed in this regard for the purpose of improving the worker's level of performance in terms of skill and productivity.

Amendment note: Article 44 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Chapter Two - Qualification and Training Contracts with Persons Not Employed by the Employer

Article 45

A qualification and training contract is a contract under which an employer undertakes to qualify or train a person in preparation for a specified occupation.

Article 46

A qualification or training contract shall be in writing and shall specify the occupation for which the person is to be trained, the duration and successive stages of the training, the skill intended to be acquired, and the amount of the allowance payable to the trainee at each stage, provided that such allowance is not determined on a piece-rate or production basis. The contract shall also specify the rights and duties of both the trainee and the employer, and whether the qualification or training will take place at an establishment belonging to the employer or at another establishment.

Amendment note: Article 46 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 47

The Minister may require establishments to accept a specified number or percentage of students and graduates of universities, colleges, institutes, and training centers for the purpose of training and completing practical experience, in accordance with the conditions, arrangements, and periods prescribed by the Implementing Regulations. A training contract shall be concluded between the trainee and the employer, and the provisions of this Chapter shall apply thereto. The establishment may pay the trainee an allowance.

Amendment note: Article 47 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 48

1. An employer may terminate a qualification or training contract if it is established that the trainee or person undergoing qualification lacks the aptitude or ability to complete the training or qualification

program beneficially, based on periodic evaluation reports prepared by the establishment providing the training or qualification. The trainee or person undergoing qualification may likewise terminate the contract. A party wishing to terminate the contract shall notify the other party at least one week before the specified termination date. Neither party may claim compensation from the other unless the contract contains a provision to that effect.

2. Upon completion of the training or qualification period, the employer may require the trainee or person undergoing qualification to work for the employer for a period equal to the period of training or qualification. If the trainee or person undergoing qualification refuses or fails to work for all or part of that equivalent period, the trainee shall reimburse the employer for the training or qualification costs borne by the employer, in full or in proportion to the unserved portion of the required period.

Amendment note: Article 48 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 49

The provisions of this Law concerning annual leave, official holidays, maximum working hours, daily and weekly rest periods, occupational safety and health rules, work injuries and the conditions relating thereto, and any matters determined by the Minister shall apply to qualification and training contracts.

Part Five - Labor Relations

Chapter One - Employment Contract

Article 50

An employment contract is a contract concluded between an employer and a worker under which the worker undertakes to work under the management or supervision of the employer in return for a wage.

Article 51

An employment contract shall be made in two copies, one for each party, and shall be documented in accordance with the relevant legal provisions and as further specified by the Implementing Regulations. The contract shall be deemed valid even if it is not in writing. In such case, the worker alone may prove the contract and the rights arising therefrom by all methods of proof, and either party may request that the contract be put in writing at any time. For government and public-institution workers, the appointment decision or order issued by the competent authority shall serve in place of an employment contract.

Amendment note: Article 51 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 52

1. Subject to Article 37 of this Law, the Ministry shall prepare a standard form for each type of employment contract. The form shall contain, as a minimum, the employer's name and place of business; the worker's name and nationality; information required to establish the worker's identity; the worker's residential address; the agreed wage, including benefits and allowances; the type and place of work; the date of commencement; the duration of the contract if fixed-term; and the principal rights and obligations of each party.
2. The employment contract shall conform to the form referred to in paragraph (1) of this Article. The parties may add other clauses provided they do not conflict with this Law, its Implementing Regulations, or decisions issued for its implementation.

Amendment note: Article 52 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 53

If the worker is to be subject to a probationary period, this shall be expressly stated in the employment contract and its duration shall be clearly specified. In all cases, the total probationary period shall not exceed one hundred and eighty days. The Implementing Regulations shall set out the related provisions, including leave that is excluded from the calculation of the probationary period. Either party may terminate the contract during this period.

Amendment note: Article 53 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 54

A worker may not be placed on probation more than once with the same employer. As an exception, the parties may agree in writing to a further probationary period provided it is for another occupation or different work, or provided at least six months have elapsed since termination of the worker's previous relationship with the employer. If the contract is terminated during the probationary period, neither party shall be entitled to compensation and the worker shall not be entitled to an end-of-service award in respect of that period.

Amendment note: Article 54 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 55

1. A fixed-term employment contract shall terminate upon expiry of its term. If the parties continue to perform it after expiry, it shall be deemed renewed for an indefinite term, subject to Article 37 of this Law with respect to non-Saudi workers.
2. If a fixed-term contract contains a clause providing for renewal for an equivalent or another specified period, it shall renew for the agreed period. If renewal occurs three consecutive times, or if the original contract together with renewal periods reaches four years, whichever occurs first, and the parties continue performing the contract, it shall become an indefinite-term contract.

Amendment note: Article 55 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 56

In every case in which a contract is renewed for a fixed period, the renewed period shall be treated as an extension of the original period for purposes of determining rights for which length of service is relevant.

Article 57

Where the contract is concluded for the performance of a specified task, it shall terminate upon completion of the agreed task.

Article 58

1. An employer may not, without the worker's written consent, transfer the worker from the original place of work to another place where such transfer would require the worker to change residence.
2. In cases of necessity arising from temporary circumstances, and for a period not exceeding thirty days in a year, the employer may assign the worker to work at a place other than the agreed place without the worker's consent, provided the employer bears the worker's transportation and accommodation expenses during that period.

Amendment note: Article 58 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 59

A worker who is paid monthly may not be transferred to the category of daily-paid, weekly-paid, piece-rate, or hourly-paid workers without the worker's written consent. Such transfer shall not prejudice rights acquired by the worker during the period in which the worker was paid monthly.

Article 60

Without prejudice to Article 38 of this Law, a worker may not be assigned, without written consent, work that differs substantially from the work agreed upon, except in cases of necessity arising from temporary circumstances and for a period not exceeding thirty days in a year.

Chapter Two - Duties and Disciplinary Rules

First: Duties of Employers

Article 61

In addition to the duties prescribed by this Law and by the regulations and decisions issued for its implementation, an employer shall:

1. Refrain from subjecting a worker to forced labor; refrain from withholding, without judicial authority, the worker's wage or any part thereof; treat workers with proper respect; and refrain from any statement or act that infringes their dignity or religion.
2. Allow workers the time necessary to exercise the rights granted to them under this Law without deduction from their wages for such time. The employer may organize the exercise of these rights in a manner that does not disrupt the progress of work.
3. Facilitate for officials of the competent authorities every task relating to implementation of this Law.
4. Refrain from any act that would nullify or weaken the application of equal opportunity or equal treatment in employment and occupation, whether through exclusion, differentiation, or preference among applicants or workers on the basis of race, color, sex, age, disability, marital status, or any other form of discrimination.
5. Provide suitable accommodation for workers, or instead pay them an appropriate cash housing allowance together with their wages.
6. Provide suitable transportation for workers between their residence and workplace, or instead pay them an appropriate cash transportation allowance together with their wages.

Amendment note: Article 61 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 62

If a worker reports for work at the prescribed time, or establishes readiness to work at that time, and is prevented from working for a reason attributable to the employer, the worker shall be entitled to the wage for the period during which no work is performed.

Article 63

The employer, the employer's representative, and any person having authority over workers shall prevent the introduction into workplaces of any substance prohibited under Islamic Sharia. Any person found in possession of or using such substance shall be subject to the penalties prescribed by this Law, without prejudice to penalties prescribed under Sharia.

Article 64

Upon termination of the employment contract, the employer shall:

1. At the worker's request, provide the worker free of charge with a certificate of service stating the date on which employment commenced, the date on which the relationship ended, the worker's occupation, and the amount of the worker's final wage. The employer may not include in the certificate anything that could damage the worker's reputation or reduce the worker's employment opportunities.
2. Return to the worker all certificates and documents deposited with the employer.

Amendment note: Article 64 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Second: Duties of Workers

Article 65

In addition to the duties prescribed by this Law and by the regulations and decisions issued for its implementation, a worker shall:

1. Perform the work in accordance with professional standards and the employer's instructions, provided such instructions do not conflict with the contract, the law, or public morals and do not expose the worker to danger.
2. Exercise due care in respect of machinery, tools, equipment, and raw materials belonging to the employer that are placed at the worker's disposal or entrusted to the worker, and return to the employer any unused materials.
3. Observe proper conduct and morals during work.
4. Provide all necessary assistance, without requiring additional pay, in cases of disasters and dangers threatening the safety of the workplace or persons working therein.
5. Submit, at the employer's request, to medical examinations that the employer wishes to conduct before or during employment in order to verify that the worker is free from occupational or communicable diseases.
6. Preserve technical, commercial, and industrial secrets relating to materials produced by the worker or to whose production the worker directly or indirectly contributes, and all professional secrets relating to the work or establishment whose disclosure could harm the employer's interests.

Third: Disciplinary Rules

Article 66

The disciplinary penalties that an employer may impose on a worker are:

1. Warning.
2. Fine.
3. Deprivation of, or postponement of, an increment for a period not exceeding one year, where such increment is provided by the employer.
4. Postponement of promotion for a period not exceeding one year, where promotion is provided by the employer.
5. Suspension from work without pay.
6. Dismissal in the cases prescribed by law.

Article 67

An employer may not impose on a worker a penalty that is not provided for in this Law or in the work organization regulations.

Article 68

A penalty may not be increased on account of a repeated violation if one hundred and eighty days have elapsed since the worker was notified of the penalty imposed for the previous violation.

Article 69

A worker may not be accused of a violation more than thirty days after its discovery. No disciplinary penalty may be imposed more than thirty days after completion of the investigation into the violation and establishment of the worker's responsibility therefor.

Article 70

A disciplinary penalty may not be imposed for an act committed by the worker outside the workplace unless the act is connected with the work, the employer, or the responsible manager. For a single violation, the worker may not be fined more than the equivalent of five days' wages, may not be subjected to more than one penalty, may not have more than five days' wages deducted in any one month in satisfaction of fines, and may not be suspended without pay for more than five days in any one month.

Article 71

No disciplinary penalty may be imposed on a worker until the worker has been informed in writing of the allegation, questioned, given an opportunity to present a defense, and the foregoing has been recorded in minutes placed in the worker's personal file. For minor violations where the penalty does not exceed a warning or a fine equivalent to not more than one day's wage, questioning may be oral, provided it is recorded in the minutes.

Article 72

The worker shall be notified in writing of the decision imposing a penalty. If the worker refuses to receive the notice or is absent, it shall be sent by registered mail to the address recorded in the worker's file. The worker may submit a written grievance to the competent authority within the employer's organization within thirty days, excluding official holidays, from the date of notification. If the grievance is rejected, or if no written decision is issued within fifteen days from the date of submission, the worker may challenge the disciplinary decision before the labor courts within thirty days, excluding official holidays, from the date of rejection of the grievance or expiry of the period specified for deciding it, whichever occurs first.

Amendment note: Article 72 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 73

An employer shall record fines imposed on workers in a special register stating the worker's name, wage, amount of the fine, reason for imposing it, and date thereof. Fines may be used only for purposes benefiting the workers of the establishment. Such funds shall be administered by the labor committee at the establishment; where no such committee exists, the fines shall be used with the approval of the Ministry.

Amendment note: Article 73 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Chapter Three - Termination of the Employment Contract

Article 74

An employment contract shall terminate in any of the following cases:

1. The parties agree to terminate it, provided the worker's consent is in writing.
2. The fixed term stated in the contract expires, unless the contract has been expressly renewed in accordance with this Law, in which case it shall continue until the renewed term expires.
3. At the initiative of either party in an indefinite-term contract, in accordance with Article 75 of this Law.

3 bis. Resignation.

4. The worker reaches the retirement age prescribed under the Social Insurance Law, unless the parties agree to continue the employment relationship beyond that age.

5. Force majeure.
6. Permanent closure of the establishment.
7. Termination of the activity in which the worker is employed, unless otherwise agreed.

7 bis. Issuance of a decision or final judgment by the competent court terminating the worker's contract in any bankruptcy proceeding commenced under the Bankruptcy Law.

8. Any other case prescribed by another law.

Amendment note: Article 74 was amended pursuant to Royal Decree No. (M/134) dated 27/11/1440 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 75

1. Where an employment contract is for an indefinite term and the wage is paid monthly, either party may terminate it for a legitimate reason as follows:
    a. If termination is initiated by the worker, the worker shall give the employer written notice at least thirty days before the termination date.
    b. If termination is initiated by the employer, the employer shall give the worker written notice at least sixty days before the termination date.
2. Where an indefinite-term contract provides for a wage that is not paid monthly, the party terminating the contract for a legitimate reason, whether the worker or employer, shall give the other party written notice at least thirty days before the termination date.

Amendment note: Article 75 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 76

If a party terminating an indefinite-term contract fails to observe the notice period prescribed under Article 75 of this Law, that party shall pay the other party an amount equal to the worker's wage for the notice period, unless the parties have agreed to a greater amount.

Amendment note: Article 76 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 77

Unless the contract provides for specific compensation for termination by either party for an illegitimate reason, the party harmed by such termination shall be entitled to compensation as follows:

1. Fifteen days' wage for each year of the worker's service where the contract is for an indefinite term.
2. The wage for the remaining period of the contract where the contract is for a fixed term.
3. In either case, the compensation referred to in paragraphs (1) and (2) shall not be less than the worker's wage for two months.

Amendment note: Article 77 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 78

Where notice is given by the employer, the worker shall be entitled, during the notice period, to be absent for one full day per week or eight hours during the week to search for other employment, while remaining entitled to the wage for that day or those hours. The worker may determine the day and hours of absence, provided the employer is notified at least one day in advance. The employer may release the worker from the duty to work during the notice period while treating the worker's service as continuous until the notice period expires and bearing the resulting obligations, in particular payment of the worker's wage for the notice period.

Amendment note: The previous text of Article 78 was repealed and replaced pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 79

An employment contract shall not terminate by reason of the employer's death unless the employer's person was taken into consideration when the contract was concluded. The contract shall, however, terminate upon the worker's death or inability to perform the work, as established by a medical certificate approved by the authorized health authorities or by an authorized physician designated by the employer.

Article 79 bis

1. A resignation request shall be deemed accepted if thirty days pass from the date of submission without a response from the employer. Where required in the interests of work, the employer may postpone acceptance of the resignation for a period not exceeding sixty days by providing the worker with a written, reasoned explanation before the expiry of the thirty-day period referred to in this paragraph. The postponement period shall be calculated from the date on which the explanation is provided to the worker.
2. The employment contract shall terminate by resignation on the date the employer accepts the resignation, upon expiry of the thirty-day period referred to in paragraph (1) without a response from the employer, or upon expiry of the postponement period referred to in paragraph (1), as applicable.
3. The worker may withdraw the resignation request within a period not exceeding seven days from the date of submission, unless the employer accepts it before the withdrawal.
4. A resignation request may not specify a deferred future effective date.
5. The employment contract shall remain in force during the period in which the resignation request is pending, and both parties shall continue to perform all obligations arising from it.
6. A worker whose contract terminates by resignation shall be entitled to all rights granted under this Law.

Amendment note: Article 79 bis was added pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 80

An employer may not terminate an employment contract without an end-of-service award, notice, or compensation except in the following cases, and provided the worker is given an opportunity to state the reasons for objecting to the termination:

1. If the worker assaults the employer, the responsible manager, or any of the worker's superiors or subordinates during or because of work.
2. If the worker fails to perform the essential obligations arising from the employment contract, refuses to obey lawful orders, or deliberately fails, despite written warning, to observe instructions concerning the safety of work and workers that the employer has posted in a conspicuous place.
3. If it is established that the worker has engaged in misconduct or committed an act involving dishonesty or breach of trust.
4. If the worker intentionally commits an act or omission intended to cause material loss to the employer, provided the employer reports the incident to the competent authorities within twenty-four hours of becoming aware of it.
5. If it is established that the worker used forgery in order to obtain the employment.
6. If the worker was appointed on probation.
7. If the worker is absent without a legitimate reason for more than thirty days during a single contractual year or for more than fifteen consecutive days, provided dismissal is preceded by a written warning from the employer after twenty days of absence in the first case and ten days of absence in the second case.
8. If it is established that the worker unlawfully exploited the worker's position to obtain personal results or gains.
9. If it is established that the worker disclosed industrial or commercial secrets relating to the work in which the worker is employed.

Amendment note: Article 80 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 81

A worker may leave employment without notice while retaining all statutory rights in any of the following cases:

1. If the employer fails to fulfill essential contractual or statutory obligations toward the worker.
2. If it is established that the employer or the employer's representative misled the worker at the time of contracting with respect to the terms and conditions of work.
3. If the employer, without the worker's consent, assigns the worker work that differs substantially from the work agreed upon, contrary to Article 60 of this Law.

4. If the employer, a member of the employer's family, or the responsible manager commits an assault involving violence or engages in indecent conduct toward the worker or a member of the worker's family.
5. If the employer or responsible manager treats the worker with cruelty, injustice, or humiliation.
6. If a serious danger at the workplace threatens the worker's safety or health, provided the employer is aware of the danger and fails to take measures indicating its removal.
7. If the employer or the employer's representative, through conduct and particularly through unjust treatment or violation of the terms of the contract, causes the worker to appear to be the party terminating the contract.

Article 82

An employer may not terminate a worker's service on account of illness before the worker has exhausted the periods of sick leave prescribed by this Law. The worker may request that annual leave be combined with sick leave.

Article 83

1. If the work assigned to a worker enables the worker to become acquainted with the employer's customers, the employer may, for the protection of legitimate interests, require the worker not to compete with the employer after termination of the contract. For such a condition to be valid, it shall be in writing and specifically limited as to time, place, and type of work, and its duration shall not exceed two years from the date on which the relationship between the parties ends.
2. If the work assigned to a worker enables the worker to become acquainted with the employer's business secrets, the employer may, for the protection of legitimate interests, require the worker not to disclose such secrets after termination of the contract. For such a condition to be valid, it shall be in writing and specifically limited as to time, place, and type of work.
3. As an exception to the provisions of this Law, the employer may bring an action within one year from the date on which the employer discovers the worker's breach of any obligation set out in this Article.

Amendment note: Article 83 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Chapter Four - End-of-Service Award

Article 84

Upon termination of the employment relationship, the employer shall pay the worker an end-of-service award calculated on the basis of one-half month's wage for each of the first five years of service and one month's wage for each subsequent year. The worker's last wage shall be the basis for calculating the award. The worker shall also be entitled to an award for fractions of a year in proportion to the period actually served.

Article 85

If the employment relationship ends by reason of the worker's resignation, the worker shall be entitled to one-third of the end-of-service award after continuous service of not less than two years and not more than five years, two-thirds of the award if the worker's continuous service exceeds five years but is less than ten years, and the full award if the worker's service reaches ten years or more.

Article 86

As an exception to Article 8 of this Law, the parties may agree that, for the purpose of calculating the end-of-service award, the wage shall exclude all or part of commissions, percentages of sales proceeds, and similar wage components that are by their nature subject to increase and decrease.

Article 87

As an exception to Article 85 of this Law, the worker shall be entitled to the full end-of-service award if the worker leaves work as a result of force majeure beyond the worker's control. A female worker shall likewise be entitled to the full award if she terminates the contract within six months from the date of her marriage or within three months from the date of giving birth.

Article 88

When a worker's service ends, the employer shall pay the worker's wage and settle all rights within a maximum of one week from the date on which the contractual relationship ends. Where the worker

terminates the contract, the employer shall settle all of the worker's rights within a period not exceeding two weeks. The employer may deduct from amounts due to the worker any debt owed to the employer by reason of the work.

Part Six - Working Conditions and Terms of Employment

Chapter One - Wages

Article 89

Where necessary, and upon a proposal from the Minister, the Council of Ministers may establish a minimum wage.

Article 90

1. A worker's wage and all other amounts due to the worker shall be paid in the official currency of the Kingdom in accordance with the following rules:
    a. Daily-paid workers shall be paid at least once a week.
    b. Monthly-paid workers shall be paid once a month.
    c. Where work is performed on a piece-rate basis and requires more than two weeks to complete, the worker shall receive a weekly payment proportionate to the work completed, and the remaining wage shall be paid in full during the week following delivery of the completed work.
    d. In all other cases, workers shall be paid at least once a week.
2. Establishments shall deposit wages into workers' accounts through banks approved in the Kingdom no later than the payment dates prescribed above. The Minister may exempt certain establishments from this requirement.

Amendment note: Article 90 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 91

1. If a worker, through fault or violation of the employer's instructions, causes the loss of, damage to, or destruction of machinery or products owned by or entrusted to the employer, and such loss or damage is not caused by a third party or by force majeure, the employer may deduct from the worker's wage the amount necessary to repair the damage or restore the situation to its former condition. The amount deducted for this purpose shall not exceed five days' wages in any one month. The employer may, where appropriate, seek recovery of an additional amount if the worker has other property from which payment can be obtained. The worker may challenge the allegation or the employer's assessment of compensation before the labor court. If the court determines that the employer was not entitled to recover the amount deducted, or was entitled to a lesser amount, the employer shall reimburse the worker for any amount wrongfully deducted within seven days from the date of judgment.
2. A grievance by either party shall be submitted within fifteen working days, failing which the right to grieve shall lapse. The period shall begin, for the employer, on the date the incident is discovered and, for the worker, on the date the employer notifies the worker thereof.

Article 92

No amount may be deducted from a worker's wage in respect of private rights without the worker's written consent, except in the following cases:

1. Recovery of loans made by the employer, provided that the deduction does not exceed 10% of the worker's wage.
2. Social-insurance contributions and any other contributions payable by the worker pursuant to law.
3. The worker's contributions to a savings fund and loans due to such fund.
4. Installments payable in respect of any housing project undertaken by the employer for the purpose of transferring ownership to workers, or in respect of any other benefit.
5. Fines imposed on the worker for violations, and amounts deducted in compensation for damage caused by the worker.
6. Recovery of a debt in enforcement of a judicial judgment, provided that the monthly deduction does not exceed one-quarter of the wage due to the worker unless the judgment provides otherwise.

Maintenance debt shall be satisfied first, followed by debts for food, clothing, and housing, before other debts.

Article 93

In all cases, total deductions may not exceed one-half of the worker's wage, unless the labor court determines that deductions exceeding that percentage are possible or determines that the worker needs more than one-half of the wage. In the latter case, the worker shall in no event be paid more than three-quarters of the wage.

Article 94

1. If any amount is deducted from a worker's wage for a reason other than those permitted by this Law without the worker's written consent, or if the employer delays payment of the worker's wage beyond its statutory due date without a legitimate justification, the worker, the worker's representative, or the director of the competent Labor Office may apply to the labor court for an order requiring the employer to refund the amount wrongfully deducted or to pay the overdue wages.
2. If the labor court establishes that the employer made such deduction or delayed payment of wages without justification, it may impose a fine not exceeding twice the amount deducted from the worker's wage or twice the amount of the delayed wage.

Article 95

1. If neither the employment contract nor the work organization regulations specify the wage that the employer is required to pay, the wage shall be determined by reference to the wage paid for work of the same type in the establishment, if any. If no such comparable wage exists, the wage shall be determined in accordance with the custom of the occupation in the locality where the work is performed. If no such custom exists, the labor court shall determine the wage in accordance with the requirements of justice.
2. The same approach shall apply to determining the type and scope of service the worker is required to perform.

Article 96

1. Where a worker's wage is determined on a piece-rate or production basis, the average wage received for the worker's actual working days during the final year of service shall be used to calculate any rights due under this Law.
2. Where the entire wage consists of commissions, percentages of sales, or similar elements that are by their nature subject to increase or decrease, the average daily wage shall be calculated by dividing the total amount received by the worker by the actual days worked.

Article 97

If a worker is arrested or detained by the competent authorities in a case relating to or arising from work, the employer shall continue to pay 50% of the worker's wage until the case is decided, provided that the period of arrest or detention does not exceed one hundred and eighty days. If it exceeds that period, the employer shall not be obliged to pay any portion of the wage for the excess period. If the worker is acquitted, or the investigation is closed because the allegation is unproven or unfounded, the employer shall reimburse the worker for all amounts previously withheld from the wage. If the worker is convicted, the amounts already paid to the worker shall not be recovered unless the judgment provides otherwise.

Chapter Two - Working Hours

Article 98

A worker may not be required to work more than eight actual hours per day where the employer applies a daily standard, or more than forty-eight hours per week where the employer applies a weekly standard.

During the month of Ramadan, actual working hours for Muslim workers shall be reduced so that they do not exceed six hours per day or thirty-six hours per week.

Article 99

The working hours prescribed in Article 98 may be increased to nine hours per day for certain categories of workers or in certain industries and work in which the worker does not work continuously. They may also be reduced to seven hours per day for certain categories of workers or in certain hazardous or harmful industries and work. The categories, industries, and work concerned shall be determined by a decision of the Minister.

Article 100

With the approval of the Ministry, an employer may, in establishments where the nature of work requires work to be performed in shifts, increase working hours beyond eight hours per day or forty-eight hours per week, provided that the average working hours calculated over a period of three weeks or less do not exceed eight hours per day or forty-eight hours per week.

Chapter Three - Rest Periods and Weekly Rest

First: Rest Periods

Article 101

Working hours and rest periods shall be arranged so that a worker does not work for more than five consecutive hours without a period of at least thirty minutes at a time for rest, prayer, and meals during the total working hours, and so that the worker does not remain at the workplace for more than twelve hours in any one day.

Amendment note: Article 101 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 102

Periods designated for rest, prayer, and meals shall not be included in actual working hours. During such periods the worker shall not be under the employer's authority, and the employer may not require the worker to remain at the workplace.

Article 103

The Minister may, by decision, determine cases and types of work in which work must continue without a rest period for technical or operational reasons. In such cases, the employer shall nevertheless provide periods for prayer, meals, and rest in a manner organized by the establishment's management during the work.

Second: Weekly Rest

Article 104

1. Friday shall be the weekly rest day for all workers. After notifying the competent Labor Office, the employer may substitute another day of the week for certain workers, provided the workers are enabled to perform their religious duties. The weekly rest day may not be replaced by cash compensation.
2. The weekly rest day shall be fully paid and shall be no less than twenty-four consecutive hours.

Article 105

As an exception to Article 104, in locations remote from urban areas and in work where the nature and operating conditions require continuous work, weekly rest periods due to a worker may be accumulated for a period not exceeding eight weeks if the employer and workers agree and the Ministry approves. In calculating the accumulated weekly rest period, the period shall begin from the time workers arrive at the nearest city where transportation is available and shall end at the time of departure for the return journey.

Article 106

An employer may depart from the provisions of Articles 98 and 101 and paragraph (1) of Article 104 in the following cases:

1. Annual inventory, preparation of the balance sheet, liquidation, closing of accounts, preparation for sales at reduced prices, and preparation for seasons, provided workers are not employed under this exception for more than thirty days in a year.
2. Work required to prevent a serious accident, repair its consequences, or avoid a certain loss of perishable materials.
3. Work necessary to meet an unusual pressure of work.
4. Holidays, seasons, other occasions, and seasonal work specified by decision of the Minister.

In all such cases, actual working hours shall not exceed ten hours per day or sixty hours per week. The Minister shall, by decision, determine the maximum number of overtime hours permitted in a year.

Article 107

1. The employer shall pay the worker for overtime an additional amount equal to the hourly wage plus 50% of the worker's basic hourly wage. With the worker's consent, the employer may instead grant paid compensatory leave in lieu of the overtime pay due to the worker. The Implementing Regulations shall specify the provisions relating thereto.
2. Where an establishment applies the weekly standard for working hours, hours exceeding the hours adopted for that standard shall be regarded as overtime.
3. All hours worked on holidays and official feast days shall be regarded as overtime.

Amendment note: Article 107 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 108

Articles 98 and 101 of this Law shall not apply to the following cases:

1. Persons occupying senior managerial and supervisory positions whose holders exercise the employer's authority over workers.
2. Preparatory or supplementary work that must be completed before the start of work or after its completion.
3. Work that is necessarily intermittent.
4. Workers assigned to guarding and cleaning duties, excluding civilian security guards.

The Implementing Regulations shall specify the work referred to in paragraphs (2), (3), and (4) and the maximum working hours applicable thereto.

Chapter Four - Leave

Article 109

1. A worker shall be entitled, for each year of service, to annual leave of not less than twenty-one days. This shall increase to not less than thirty days if the worker completes five consecutive years of service with the employer. Annual leave shall be paid in advance.
2. The worker shall take annual leave during the year in which it becomes due and may not waive it or receive cash in lieu of taking it while in service. The employer may determine the dates of annual leave in accordance with work requirements or grant it on a rotating basis to ensure continuity of work, and shall notify the worker of the scheduled leave date sufficiently in advance, and in no event less than thirty days beforehand.

Article 110

1. With the employer's approval, a worker may defer annual leave, or days thereof, to the following year.
2. If work circumstances so require, the employer may postpone the worker's annual leave after the end of the year in which it became due for a period not exceeding ninety days. If work circumstances require further postponement, the worker's written consent shall be obtained, provided the postponement does not extend beyond the end of the year following the year in which the leave became due.

Article 111

A worker who leaves employment before using accrued annual leave shall be entitled to payment for the unused leave relating to the period for which the leave was not taken. The worker shall also be entitled to payment for a proportionate part of annual leave for fractions of a year actually worked.

Article 112

Every worker shall be entitled to fully paid leave on holidays and occasions specified by the Implementing Regulations.

Article 113

Subject to the leave rights granted to female workers under this Law, a worker shall be entitled to fully paid leave for five days upon marriage or upon the death of the worker's spouse, an ascendant, or a descendant; three days upon the death of a brother or sister, all calculated from the date of the relevant event; and three

days upon the birth of a child, to be taken within seven days from the date of birth. The employer may request documents supporting any of these circumstances.

Amendment note: Article 113 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 114

A worker shall be entitled to paid leave of not less than ten days and not more than fifteen days, including the Eid al-Adha holiday, to perform the Hajj pilgrimage once during the worker's service, provided the worker has not previously performed Hajj. To qualify for this leave, the worker shall have completed at least two consecutive years of service with the employer. The employer may determine the number of workers granted such leave each year in accordance with work requirements.

Article 115

1. If the employer approves a worker's enrollment in, or continuation at, an educational institution, the worker shall be entitled to fully paid leave to sit examinations for a non-repeated academic year, for the actual number of examination days. If the examination relates to a repeated academic year, the worker shall be entitled to unpaid leave for the actual number of examination days. The worker shall be deprived of the leave pay if it is established that the worker did not sit the examination, without prejudice to the employer's right to take disciplinary action.
2. If the worker has not obtained the employer's approval for enrollment in an educational institution, the worker may take leave for the actual number of examination days from annual leave, if available. If annual leave is unavailable, the worker may take unpaid leave for the actual number of examination days.
3. The worker shall apply for such leave at least fifteen days before it begins.
4. The employer may require documents supporting the leave request and proof that the worker sat the examination.

Amendment note: Article 115 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 116

With the employer's approval, a worker may take unpaid leave for a period agreed by the parties. The employment contract shall be suspended for the portion of such leave exceeding twenty days unless the parties agree otherwise.

Article 117

A worker whose illness is established shall be entitled, during a single year, to sick leave with full pay for the first thirty days, three-quarters pay for the following sixty days, and without pay for the following thirty days, whether such leave is continuous or intermittent. For the purposes of this Article, the year shall begin on the date of the first sick leave.

Article 118

While taking any leave provided for in this Chapter, a worker may not work for another employer. If the employer establishes that the worker has done so, the employer may withhold the worker's wage for the period of leave or recover any leave pay already paid for that period.

Part Seven - Part-Time Work

Article 119

Full-time workers who are affected by a collective and temporary reduction in their normal working hours for economic, technical, or structural reasons shall not be regarded as part-time workers.

Article 120

The Minister shall issue the rules and controls necessary to regulate part-time work, specifying the obligations of both the part-time worker and the employer. The provisions of this Law shall apply only to the extent determined by the Minister, except for the protections afforded to comparable full-time workers in respect of occupational safety and health and work injuries.

Part Eight - Protection Against Occupational Hazards, Prevention of Major Industrial Accidents, Work Injuries, and Health and Social Services

Chapter One - Protection Against Occupational Hazards

Article 121

The employer shall maintain the establishment in a sanitary and clean condition, provide adequate lighting and water suitable for drinking and washing, and comply with such other occupational protection, safety, and health rules, procedures, and standards as may be prescribed by decision of the Minister.

Article 122

Every employer shall take the necessary precautions to protect workers against hazards, occupational diseases, and the machinery used in the workplace, and to ensure occupational protection and safety. The employer shall post, in a conspicuous place in the establishment, instructions concerning the safety of work and workers, in Arabic and, where necessary, in any other language understood by the workers. The employer may not charge workers, or deduct from their wages, any amount in consideration for providing such protection.

Article 123

Before a worker commences work, the employer shall inform the worker of the occupational hazards associated with the work and shall require the worker to use the prescribed protective measures. The employer shall provide workers with suitable personal protective equipment and train them in its use.

Article 124

A worker shall use the protective equipment assigned to each operation, preserve such equipment, and comply with the instructions established to safeguard the worker's health and protect the worker against injuries and diseases. The worker shall refrain from any act or omission that would prevent compliance with such instructions or that would misuse or disable the means provided to protect the workplace and the health and safety of fellow workers.

Article 125

The employer shall take the necessary precautions to prevent fires and shall provide the technical means required for firefighting, including escape exits that remain usable at all times. Detailed instructions concerning fire-prevention measures shall be posted in a conspicuous place at the workplace.

Article 126

The employer shall be responsible for emergencies and accidents suffered by persons other than the employer's workers who enter the workplace by virtue of their duties or with the approval of the employer or the employer's agents, where such emergencies or accidents result from a failure to take the technical precautions required by the nature of the work. The employer shall compensate such persons for any incapacity or damage they sustain in accordance with the general laws and regulations.

Chapter Two - Prevention of Major Industrial Accidents

Article 127

The provisions of this Chapter shall apply to major-hazard establishments.

Article 128

1. "Major-hazard establishment" means an establishment that, permanently or temporarily, produces, prepares, disposes of, handles, uses, or stores one or more hazardous substances, or categories of such substances, in quantities exceeding the permitted thresholds, where such excess causes the establishment to be classified as a major-hazard establishment.
2. "Hazardous substance" means any substance or mixture of substances that presents a hazard by reason of its chemical, physical, or toxic properties, whether alone or in combination with other substances.

3. "Major accident" means any sudden occurrence, such as a major release, fire, or explosion, arising in the course of an activity within a major-hazard establishment, involving one or more hazardous substances, and resulting in a serious danger to workers, the public, or the environment, whether immediate or delayed.

Article 129

The Ministry shall establish criteria for identifying major-hazard establishments on the basis of a list of hazardous substances, categories of such substances, or both.

Article 130

Employers shall, in coordination with the Ministry, determine the status and classification of their establishments on the basis of the criteria referred to in Article 129 of this Law.

Article 131

The Minister shall issue regulations and decisions setting out the arrangements required at the establishment level for the prevention of major hazards, the duties of employers in this regard, the arrangements to protect the public and the environment outside the site of each major-hazard establishment, the rights and duties of workers, and any other measures necessary to prevent major accidents, reduce the likelihood of their occurrence, and limit their effects.

Article 131 bis

The Minister shall, by decision, identify occupations and work that are considered hazardous or harmful, or that may expose workers to unusual risks or harm, as well as the categories of persons whose employment in such occupations or work is permanently or temporarily prohibited or is subject to special conditions. This may include determining whether working times should be restricted for any such category, in a manner consistent with the Kingdom's relevant obligations under international conventions.

Amendment note: Article 131 bis was added pursuant to Royal Decree No. (M/5) dated 7/1/1442 AH.

Chapter Three - Work Injuries

Article 132

The provisions of this Chapter shall not apply to establishments subject to the Occupational Hazards Branch of the Social Insurance Law.

Article 133

If a worker sustains a work injury or contracts an occupational disease, the employer shall provide the worker with treatment and shall bear all expenses necessary for such treatment, whether directly or indirectly, including hospitalization, examinations, medical tests, radiology, prosthetic or compensatory devices, and transportation expenses to places of treatment.

Article 134

An injury shall be regarded as a work injury in accordance with the provisions of the Social Insurance Law. Occupational diseases shall be treated as work injuries, and the date of the first medical diagnosis of the disease shall be treated as the date of injury.

Article 135

Any relapse or complication arising from a work injury shall be treated as a work injury for the purposes of benefits and treatment.

Article 136

Occupational diseases shall be determined in accordance with the schedule of occupational diseases provided for under the Social Insurance Law. The degrees of total or partial permanent disability shall be determined in accordance with the disability-percentage guide prescribed under that Law.

Article 137

A worker who is temporarily unable to work as a result of a work injury shall be entitled to financial assistance equal to the worker's full wage for the first sixty days, followed by 75% of the wage for the duration of treatment. If the treatment period reaches one year, or if it is medically determined that recovery is unlikely

and the worker is unable to work, the injury shall be regarded as a total disability, the employment contract shall terminate, and the worker shall be compensated for the injury. The employer may not recover any amounts paid to the worker during that year.

Amendment note: Article 137 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 138

If a work injury results in total permanent disability or death, the injured worker or the worker's beneficiaries shall be entitled to compensation equal to three years' wages, provided that the amount shall not be less than SAR 54,000. If the injury results in partial permanent disability, the injured worker shall be entitled to compensation equal to the assessed percentage of disability, in accordance with the approved schedule, multiplied by the compensation payable for total permanent disability.

Article 139

The employer shall not be liable for the obligations provided for in Articles 133, 137, and 138 if it is established that:

1. The worker intentionally injured themself.
2. The injury resulted from intentional misconduct by the worker.
3. Without a legitimate reason, the worker refused to undergo a medical examination or refused the treatment prescribed by the physician designated by the employer.

Article 140

The liability of former employers for whom a worker suffering from an occupational disease previously worked shall be determined in light of the medical report of the treating physician. Such employers shall be required to pay the compensation provided for in Article 138 of this Law, each in proportion to the period during which the injured worker was employed by that employer, provided that the industries or occupations carried on by those employers are among those capable of causing the disease contracted by the worker.

Article 141

The procedures for reporting work injuries shall be determined by decision of the Minister.

Chapter Four - Health and Social Services

Article 142

Every employer shall provide one or more first-aid cabinets supplied with medicines and other materials necessary for first aid.

The Implementing Regulations shall specify the first-aid equipment and quantities of medicines that such cabinets must contain, the arrangements for preserving them, and the qualifications and requirements applicable to persons assigned to provide first aid.

Article 143

Every employer shall arrange for one or more physicians to conduct a comprehensive medical examination, at least once each year, of workers who are exposed to the possibility of contracting any occupational disease listed in the occupational-disease schedules referred to in the Social Insurance Law. The results of such examinations shall be recorded in the employer's records and in the files of the workers concerned.

Article 144

The employer shall provide workers with preventive and curative health care in accordance with the standards prescribed by the Minister, taking into account the coverage provided under the Cooperative Health Insurance Law.

Article 145

With the approval of the Minister, an employer may establish a savings and thrift fund, provided that workers' participation in the fund is voluntary. The provisions governing all matters relating to the operation of the fund shall be announced.

Article 146

With respect to workers performing work in locations remote from populated areas, the employer shall, at the employer's expense, provide all or some of the following, as determined by the Minister:

1. Shops selling food, clothing, and other essential necessities at reasonable prices in work areas where such shops are not ordinarily available.
2. Suitable recreational and educational facilities and sports grounds attached to workplaces.
3. Appropriate medical arrangements necessary to preserve workers' health and to provide comprehensive treatment for their families. For this purpose, "family" means the spouse, children, mother, and father residing with the worker.
4. Schools for workers' children where sufficient schools are not available in the area.
5. Mosques or prayer areas at workplaces.
6. Literacy programs for workers.

The Implementing Regulations shall determine which locations are considered remote from populated areas.

Article 147

An employer whose workers perform work in locations remote from populated areas, in mines and quarries, or at oil-exploration centers shall provide housing, camps, and meals for the workers.

The Minister shall, by decision, determine the conditions and specifications for housing and camps, the charge for use of housing, the number of meals, quantities and types of food and the conditions applicable thereto, the amount to be borne by the worker for meals, and any other requirements necessary to preserve workers' health.

Article 148

Every employer shall provide workers with transportation from their places of residence, or from a designated assembly point, to the workplaces and back each day where those workplaces are not served by regular transportation operating at times compatible with working hours.

Part Nine - Employment of Women

Article 149

Repealed.

Amendment note: Article 149 was repealed pursuant to Royal Decree No. (M/5) dated 7/1/1442 AH.

Article 150

Repealed.

Amendment note: Article 150 was repealed pursuant to Royal Decree No. (M/5) dated 7/1/1442 AH.

Article 151

1. A female worker shall be entitled to maternity leave with full pay for a period of twelve weeks. The six weeks following childbirth shall be compulsory leave, and the worker may distribute the remaining six weeks as she sees fit, beginning from four weeks before the expected date of delivery. The expected date of delivery shall be established by a medical certificate certified by a health authority. If, because childbirth occurs later than expected, the remaining leave is less than six weeks, the period required to complete the six weeks shall be treated as unpaid leave. In all cases, the female worker may extend this leave for one additional month without pay.
2. If a female worker gives birth to a sick child or a child with a disability whose health condition requires a continuous companion, she shall be entitled to one month of fully paid leave beginning after the end of maternity leave. She may extend that leave for one additional month without pay.

Amendment note: Article 151 was amended and incorporated the substance of former Article 152 following its amendment pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH, and was subsequently amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 152

Repealed.

Amendment note: Article 152 was amended and repealed after its substance was incorporated into Article 151 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 153

The employer shall provide medical care to a female worker during pregnancy and childbirth.

Article 154

When a female worker returns to work after maternity leave, she shall be entitled, for the purpose of nursing her child, to one or more rest periods whose total duration does not exceed one hour per day, in addition to the rest periods granted to all workers. Such period or periods shall be counted as actual working hours and shall not result in any reduction in wage.

Article 155

An employer may not dismiss a female worker, or give her notice of dismissal, during her pregnancy or while she is on maternity leave. This protection shall also cover illness arising from either pregnancy or childbirth, provided that the illness is established by an approved medical certificate and that the total period of absence does not exceed one hundred and eighty days in a year, whether continuous or intermittent.

Amendment note: Article 155 was amended pursuant to Royal Decree No. (M/134) dated 27/11/1440 AH.

Article 156

Repealed.

Amendment note: Article 156 was amended and repealed after its substance was incorporated into Article 155 pursuant to Royal Decree No. (M/134) dated 27/11/1440 AH.

Article 157

A female worker shall forfeit the entitlements granted under this Part if she works for another employer during her authorized leave. In such a case, the original employer may withhold her wage for the period of leave or recover any amount already paid to her for that period.

Article 158

At every workplace where women are employed, and in all occupations, the employer shall provide seats for female workers so that they may rest.

Article 159

1. Every employer employing fifty or more female workers shall provide a suitable place with a sufficient number of caregivers to care for the children of female workers who are under six years of age, where the number of such children is ten or more.
2. The Minister may require an employer employing one hundred or more female workers in a single city to establish a nursery independently or jointly with other employers in the same city, or to contract with an existing nursery, to care for the children of female workers who are under six years of age during working hours. In such a case, the Minister shall determine the conditions and arrangements governing the nursery and the proportion of costs to be borne by the female workers benefiting from the service.

Article 160

1. A Muslim female worker whose husband dies shall be entitled to fully paid *iddah leave for a period of not less than four months and ten days from the date of death. If she is pregnant during that period, she may extend the leave without pay until she gives birth. She may not, after giving birth, use any remaining portion of the* iddah leave granted under this Law.
2. A non-Muslim female worker whose husband dies shall be entitled to fully paid leave for fifteen days.

In all cases, a widowed female worker may not work for another employer during such period. The employer may request documents supporting the circumstances referred to above.

Amendment note: Article 160 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Part Ten - Employment of Juveniles

Article 161

Juveniles may not be employed in hazardous work, harmful industries, or occupations and work that, by their nature or the circumstances in which they are performed, are likely to endanger their health, safety, or morals. The Minister shall, by decision, determine the work, industries, and occupations referred to in this Article.

Article 162

1. No person under fifteen years of age may be employed or permitted to enter workplaces. The Minister may, by decision, raise this age for certain industries, areas, or categories of juveniles.
2. As an exception to paragraph (1), the Minister may permit persons between thirteen and fifteen years of age to be employed or to work in light work, provided that such work:
    a. Is not likely to be harmful to their health or development.
    b. Does not prejudice their school attendance, participation in vocational guidance or training programs, or their ability to benefit from the education they receive.

Article 163

Juveniles may not be employed during a night period of not less than twelve consecutive hours, except in cases determined by decision of the Minister.

Article 164

Juveniles may not be required to perform actual work for more than six hours per day during the months of the year, except during Ramadan, when actual working hours shall not exceed four hours per day.

Working hours shall be arranged so that a juvenile does not work for more than four consecutive hours without one or more periods for rest, meals, and prayer, each of which shall be not less than thirty minutes, and so that the juvenile does not remain at the workplace for more than seven hours.

Juveniles may not be employed on weekly rest days, official holidays and feast days, or during annual leave. The exceptions provided for in Article 106 of this Law shall not apply to them.

Article 165

Before employing a juvenile, the employer shall obtain the following documents:

1. A national identity card or an official birth certificate.
2. A certificate of medical fitness for the required work, issued by a specialist physician and certified by a health authority.
3. The consent of the juvenile's guardian.

These documents shall be kept in the juvenile's personnel file.

Article 166

The employer shall notify the competent Labor Office of every juvenile employed by the employer within the first week of employment and shall maintain at the workplace a special register of juvenile workers stating the juvenile's name and age, the full name and place of residence of the guardian, and the date on which the juvenile began employment.

Article 167

The provisions of this Part shall not apply to work performed by children and juveniles in schools for purposes of general, vocational, or technical education, or in other training institutions. They shall also not apply to work performed in establishments by persons who have reached at least fourteen years of age where such work is carried out under conditions prescribed by the Minister and forms an essential part of any of the following:

1. An educational or training course for which a school or training institution bears primary responsibility.
2. A training program carried out mainly or entirely in an establishment where the competent authority has approved the program.

3. A guidance or orientation program intended to facilitate the choice of an occupation or type of training.

Part Eleven - Maritime Employment Contract

Article 168

For the purposes of this Part, the terms and expressions "ship," "shipowner/operator," "captain," "seafarer," and "maritime employment contract," wherever used herein, shall have the meanings assigned to them under the Commercial Maritime Law.

Amendment note: Article 168 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 169

Every person working aboard a ship shall be subject to the authority and orders of its captain.

Article 170

All employment contracts of seafarers working aboard a ship shall be entered in, or attached to, the ship's records. Such contracts shall be drafted in clear language and shall state whether the contract is for a fixed term or for a voyage. If it is for a fixed term, the term shall be clearly specified. If it is for a voyage, the city or seaport at which the voyage ends shall be specified, together with the stage of unloading or loading at that port upon which the contract terminates.

Article 171

A maritime employment contract shall state the date and place of its conclusion; the name of the shipowner/operator; the seafarer's name, surname, age, nationality, and domicile; the type of work assigned to the seafarer and the manner in which it is to be performed; the certificate authorizing the seafarer to work in maritime navigation; the seafarer's maritime identity document; the amount of the wage; and the term of the contract. If the contract is for a single voyage, it shall also specify the city or seaport at which the voyage ends and the stage of unloading or loading at that port upon which the employment terminates, together with any other particulars of the contract.

The contract shall be made in three copies: one for the shipowner/operator, one for the captain to retain aboard the ship, and one for the seafarer.

Article 172

The rules and conditions governing work aboard the ship shall be posted on the ship in the area designated for personnel. Such rules and conditions shall include the following:

1. The seafarers' obligations and duties, the rules governing work aboard the ship, duty schedules, and daily working hours.
2. The duties of the shipowner/operator toward seafarers with respect to fixed wages, bonuses, and other forms of remuneration.
3. The manner in which payment of wages may be suspended or deductions made, and the manner in which advances on wages may be paid.
4. The place and time for settlement of wages and final accounting.
5. The rules and standards governing food and accommodation aboard the ship.
6. Treatment of seafarers' illnesses and injuries.
7. Seafarers' conduct and the conditions for repatriation to their home country.
8. Seafarers' paid annual leave.
9. End-of-service awards and other compensation payable upon termination or expiry of the employment contract.

Article 173

A person employed as a seafarer shall:

1. Be at least eighteen years of age.
2. Hold a certificate authorizing the person to work in maritime service.
3. Be medically fit.

Article 174

All amounts due to a seafarer shall be paid in the official currency. They may be paid in a foreign currency where they fall due while the ship is outside territorial waters and the seafarer agrees to such payment.

A seafarer may request the employer to pay any portion of the seafarer's cash wage to a person designated by the seafarer.

Article 175

If a voyage is shortened for any reason, whether voluntarily or by force majeure, the wage of a seafarer employed under a maritime employment contract for a single voyage shall not be reduced as a result.

Article 176

If the wage is determined as a share of profits or freight earnings, the seafarer shall not be entitled to compensation if the voyage is cancelled, nor to an increase in wage if the voyage is delayed or prolonged. However, if the delay or prolongation results from an act of the shippers, the seafarer shall be entitled to compensation from the shipowner/operator.

Article 177

If the ship is captured, sinks, or becomes unseaworthy, the seafarer shall be entitled to wages up to the date on which the incident occurs.

Article 178

Without prejudice to the provisions of this Law concerning maritime employment contracts, the Minister shall, in coordination with the Transport General Authority, issue regulations governing maritime employment contracts. Such regulations shall include provisions concerning the rights and obligations of the parties; living conditions, safety, food, sleeping arrangements, and recreation aboard the ship; measures the employer must take to prevent injuries and occupational diseases; health care; hours of work and rest; leave; training and development of seafarers' skills; repatriation of seafarers; issuance of a certificate confirming the ship's compliance with this Law; mechanisms for inspection and supervision of ships' compliance with this Law; identification of violations and the penalties applicable thereto; and procedures for amicable settlement of complaints.

Amendment note: Article 178 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 179

Working hours aboard a ship while it is at sea shall not exceed fourteen hours in any twenty-four-hour period or seventy-two hours in any seven-day period.

Article 180

Every seafarer who contributes to assisting or rescuing another ship shall be entitled to a share of the reward earned by the ship on which the seafarer works, regardless of the form of remuneration received for the work performed.

Article 181

If a seafarer dies during a voyage, the seafarer's heirs shall be entitled to the wage due up to the date of death where the wage is calculated monthly. If the wage is calculated by voyage, the heirs shall be entitled to the wage for the entire voyage. If the wage consists of a share of profits, the full share shall become due.

Amounts due to a deceased or missing seafarer, or to a seafarer who is unable to receive them, shall be deposited with the Labor Office at the port of arrival in the Kingdom.

Article 182

The employer may terminate the contract without prior notice and without compensation if the voyage is cancelled before it begins for a reason beyond the control of the shipowner/operator and the wage is based on a single voyage, unless the contract provides otherwise.

Amendment note: Article 182 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 183

Upon expiry or termination of the contract, the employer shall:

1. Return the seafarer to the port from which the seafarer departed at the commencement of performance of the contract.
2. Provide the seafarer's food and accommodation until arrival at that port.

Article 184

The shipowner/operator shall repatriate the seafarer to the seafarer's home country in the following cases:

1. If the voyage is cancelled by the act of the shipowner/operator after the ship has departed.
2. If the voyage is cancelled after the ship has sailed because trade with the destination designated for the voyage has been prohibited.
3. If the seafarer is removed from the ship because of illness, injury, or disability.
4. If the ship is sold in a foreign country.
5. If the seafarer is dismissed from service during the voyage without lawful justification.
6. If the contract concluded with the seafarer expires at a port other than the port specified in the contract.

Part Twelve - Work in Mines and Quarries

Article 185

For the purposes of this Part, work in mines and quarries means the following:

1. Operations relating to prospecting or exploration for mineral materials, including precious stones, or their extraction or processing within the licensed area, whether such minerals are solid or liquid.
2. Operations relating to the extraction of deposits of mineral materials found on or beneath the surface of the earth, or their concentration or processing within the licensed area.
3. Construction work and the installation of structures and equipment connected with the operations referred to in paragraphs (1) and (2) of this Article.

Article 186

No person under eighteen years of age may be employed in a mine or quarry.

Amendment note: Article 186 was amended pursuant to Royal Decree No. (M/5) dated 7/1/1442 AH.

Article 187

No person may be permitted to work in operations to which this Part applies unless the person has undergone a comprehensive medical examination and has been found medically fit for the required work. Such examination shall be repeated periodically, and the worker may not be charged any expense for the required medical examinations.

The Minister shall, by decision, determine the applicable conditions, requirements, and intervals for such examinations.

Article 188

The actual working hours spent by a worker underground shall not exceed seven hours per day. A worker may not remain at the workplace, whether above or below ground, for more than ten hours per day. Where work is performed underground, this period shall include the time taken by the worker to travel from the surface to the underground workplace and to return from underground to the surface.

Article 189

Entry into workplaces and their ancillary areas shall be prohibited to persons other than workers employed there, persons assigned to inspect the mine or quarry, and persons holding special authorization from the competent authority.

Article 190

The employer shall maintain a special register to record and account for workers before they enter workplaces and when they leave them.

Article 191

The employer or responsible manager shall establish regulations containing orders and instructions concerning general safety.

Article 192

The employer shall establish a rescue station close to the workplace, equipped with the necessary rescue and first-aid equipment. The station shall have suitable means of communication enabling immediate assistance to be requested, and the employer shall appoint a trained technical worker to supervise rescue and first-aid operations.

Article 193

Without prejudice to Article 142 of this Law, an employer shall provide, in every mine or quarry employing at least fifty workers, a suitable facility containing a room equipped for rescue and first aid, another room for nursing care, and one or more changing rooms.

Where individual mines or quarries employ fewer than fifty workers and are located within a twenty-kilometer-diameter area, the employers may jointly establish a centrally located rescue and first-aid facility, or an employer may establish an independent rescue and first-aid facility.

The Minister may determine the rescue and first-aid equipment and the preventive and protective measures required in mines and quarries, as well as the responsibilities of employers and the rights and duties of workers.

Part Thirteen - Labor Inspection

Article 194

Labor inspection shall be carried out by inspectors who are employees of the Ministry, or by other Saudi nationals designated by the Minister or the Minister's delegate. Such inspectors shall have the powers and jurisdiction prescribed by this Law.

Amendment note: Article 194 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 195

Repealed.

Amendment note: Article 195 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 196

Labor inspectors shall be responsible for the following:

1. Monitoring implementation of this Law, its Implementing Regulations, and the decisions issued for its implementation.
2. Providing employers and workers with technical information and guidance enabling them to follow the best means of implementing this Law.
3. Informing the competent officials at the Ministry of deficiencies that the existing provisions are inadequate to address and proposing the measures required in that regard.
4. Recording violations of this Law, its Implementing Regulations, and the decisions issued for its implementation.
5. Verifying violations detected by other competent government authorities and referred to the Ministry.
6. Proposing the appropriate fine in accordance with the schedule of violations and penalties.

Amendment note: Article 196 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 197

Repealed.

Amendment note: Article 197 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 198

Labor inspectors shall have the right to:

1. Enter any establishment subject to the Labor Law at any time during the establishment's working hours without prior notice.
2. Conduct any examination or investigation necessary to verify proper implementation of the Law. In particular, they may:
    a. Question the employer, the employer's representative, or workers, individually or in the presence of witnesses, concerning any matter related to implementation of the provisions of the Law.
    b. Examine all books, registers, and other documents required to be kept under this Law and the decisions issued pursuant thereto, and obtain copies or extracts thereof.
    c. Take one or more samples of materials used or handled in industrial and other operations subject to inspection where such materials are suspected of having a harmful effect on workers' health or safety, for analysis in government laboratories to determine the extent of such effect, after informing the employer or the employer's representative.

Amendment note: Article 198 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 199

Employers, their agents, and persons responsible at the workplace shall provide labor inspectors and officials assigned to labor inspection with the facilities necessary for the performance of their duties. They shall provide any information requested concerning the nature of their work, respond to requests to appear before the inspectors, and appoint a representative when requested to do so.

Amendment note: Article 199 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 200

A person conducting an inspection shall notify the employer or the employer's representative of the inspector's presence, unless the inspector considers that the purpose of the inspection requires otherwise.

Article 201

A labor inspector may issue instructions requiring employers to make, within periods specified by the inspector, modifications to work arrangements, devices, and equipment in order to ensure compliance with provisions concerning workers' health and safety. Where a danger threatens workers' health or safety, the inspector may require immediate implementation of such measures as the inspector considers necessary to remove the danger.

Article 202

A labor inspector shall keep absolutely confidential any complaint received concerning a defect in equipment or a violation of the provisions of the Law and shall not disclose to the employer or the employer's representative the existence of such complaint.

Article 203

Repealed.

Amendment note: Article 203 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 204

Whenever necessary, physicians, engineers, chemists, and occupational safety and health specialists shall participate in inspections. The Director of the Labor Office and labor inspectors may, where necessary, request the competent executive authorities to provide the assistance required.

Article 205

Repealed.

Amendment note: Article 205 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 206

Repealed.

Amendment note: Article 206 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 207

Repealed.

Amendment note: Article 207 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 208

Repealed.

Amendment note: Article 208 was repealed pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 209

The Minister shall issue the Implementing Regulations governing and organizing inspection activities.

Amendment note: Article 209 was amended pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Part Fourteen - Labor Dispute Settlement Bodies

Article 210

Repealed.

Amendment note: Article 210 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 211

Repealed.

Amendment note: Article 211 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 212

Repealed.

Amendment note: Article 212 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 213

Repealed.

Amendment note: Article 213 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 214

Repealed.

Amendment note: Article 214 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 215

Repealed.

Amendment note: Article 215 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 216

Repealed.

Amendment note: Article 216 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 217

Repealed.

Amendment note: Article 217 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 218

Repealed.

Amendment note: Article 218 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 219

Repealed.

Amendment note: Article 219 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 220

Repealed.

Amendment note: Article 220 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 221

Repealed.

Amendment note: Article 221 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 222

Repealed.

Amendment note: Article 222 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 223

Repealed.

Amendment note: Article 223 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 224

Repealed.

Amendment note: Article 224 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 225

Repealed.

Amendment note: Article 225 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 226

Repealed.

Amendment note: Article 226 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 227

Repealed.

Amendment note: Article 227 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Article 228

Repealed.

Amendment note: Article 228 was repealed pursuant to Royal Decree No. (M/1) dated 22/1/1435 AH.

Part Fifteen - Penalties

Article 229

1. Without prejudice to any more severe penalty prescribed by another law, any person who violates any provision of this Law, its Implementing Regulations, or the decisions issued for its implementation shall be subject to one or more of the following penalties:
    a. A fine not exceeding SAR 100,000.
    b. Closure of the establishment for a period not exceeding thirty days.
    c. Permanent closure of the establishment.
2. The penalty imposed on an offender may be doubled in the event of a repeated violation.
3. Fines shall be multiplied according to the number of persons in respect of whom the violation occurred.

Amendment note: Article 229 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 229 bis

Without prejudice to Article 229 of this Law, any person who violates Article 30(1) of this Law shall be subject to a fine of not less than SAR 200,000 and not more than SAR 500,000.

Amendment note: Article 229 bis was added pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 230

1. The Ministry may, by decision of the Minister or the Minister's delegate, impose either or both of the penalties provided for in subparagraphs (a) and (b) of Article 229(1), provided that the penalty imposed does not exceed one-half of the maximum prescribed for either penalty. A decision imposing a penalty may be challenged before the competent administrative court.
2. The Minister shall issue a schedule specifying violations and their corresponding penalties where such penalties do not exceed one-half of the maximum penalties provided for in subparagraphs (a) and (b) of Article 229(1). The schedule shall observe a graduated scale of penalties and proportionality between the amount of the penalty and the seriousness of the violation.
3. The Minister shall issue a schedule specifying violations for which the penalties exceed one-half of the maximum penalties provided for in subparagraphs (a) and (b) of Article 229(1), and shall also specify the violations punishable by the penalty provided for in subparagraph (c) of Article 229(1).
4. Where a violation warrants a penalty exceeding one-half of the prescribed maximum, or is among the violations warranting permanent closure of the establishment under the schedule referred to in paragraph (3), the Ministry shall bring an action before the competent court for consideration and imposition of the appropriate penalty provided for in Article 229.
5. The Ministry and the offender may agree to settle a violation through payment of a fine in an amount determined by the Ministry, provided that the settlement is approved by a decision of the Minister or the Minister's delegate.

Amendment note: Article 230 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH and subsequently pursuant to Royal Decree No. (M/44) dated 8/2/1446 AH.

Article 231

A person who commits a violation shall be required to remedy it within the period specified by the Implementing Regulations. Failure to remedy the violation within that period shall constitute a new violation.

Amendment note: Article 231 was amended pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 232

Fines prescribed under this Law shall be collected in accordance with the procedures applicable to the collection of public funds, and the amounts collected shall accrue to the Human Resources Development Fund.

Amendment note: This provision was amended and renumbered as Article 232 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 233

The Minister may grant a financial reward not exceeding 25% of the amount of the fine collected to any person, whether an inspection employee or another person, who assists in detecting a violation of this Law, its Implementing Regulations, or the decisions issued for its implementation.

Amendment note: Article 233 was added pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 234

A. No claim before the labor courts seeking a right provided for under this Law or arising from an employment contract shall be admissible after twelve months have elapsed from the date on which the employment relationship ended, unless the claimant presents an excuse accepted by the court or the defendant acknowledges the right.

B. Labor claims shall be heard on an expedited basis.

Amendment note: Article 234 was added pursuant to Royal Decree No. (M/14) dated 22/2/1440 AH.

Article 235

While a case is pending before the labor courts, the employer may not alter the employment conditions that were in force before the proceedings commenced in a manner that would prejudice the worker's position in the case.

Amendment note: Article 235 was added pursuant to Royal Decree No. (M/14) dated 22/2/1440 AH.

Article 236

Repealed.

Amendment note: Its substance was amended and redrafted in Articles 229 and 230 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 237

Repealed.

Amendment note: Its substance was amended and redrafted in Articles 229 and 230 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 238

Repealed.

Amendment note: Its substance was amended and redrafted in Articles 229 and 230 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 239

Repealed.

Amendment note: Its substance was amended and redrafted in Articles 229 and 230 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 240

Repealed.

Amendment note: It was amended and renumbered as Article 231 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 241

Repealed.

Amendment note: Its substance was amended and redrafted in Articles 229 and 230 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Article 242

Repealed.

Amendment note: It was amended and renumbered as Article 232 pursuant to Royal Decree No. (M/46) dated 5/6/1436 AH.

Part Sixteen - Final Provisions

Article 243

The Minister shall issue the decisions and regulations necessary to implement the provisions of this Law within one hundred and eighty days from the date on which this Law enters into force. The Implementing Regulations shall be published in the Official Gazette.

Article 244

This Law shall replace the Labor and Workers Law issued by Royal Decree No. (M/21) dated 6/9/1389 AH and shall repeal all provisions inconsistent with it. Regulations and decisions issued before this Law enters into force shall remain effective until amended.

Article 245

This Law shall be published in the Official Gazette and shall enter into force one hundred and eighty days after the date of its publication.

May Allah grant success.